

25VECV06099 25VECV06099

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-08-07

Motion: PLAINTIFFS AND CROSS-DEFENDANTS' DEMURRER TO CROSS-COMPLAINT

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Case Number: 25VECV06099 Hearing Date: August 7, 2026 Dept: W

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

TANYA KALAYDJIAN

and NADYA DONIKIAN, Successor Trustees of the SONA

DAGLIYAN SURVIVORS' TRUST under the VARTAN

and SONA DAGLIYAN LIVING TRUST dated November 5, 2002,

Plaintiff,

vs.

JIMHORN BOON KWOK; YUMMYDONUTS, INC., and DOES 1-10, inclusive,

Defendants.

CASE NO: 25VECV06099

[TENTATIVE]

ORDER RE:

PLAINTIFFS

AND CROSS-DEFENDANTS' DEMURRER TO CROSS-COMPLAINT

Dept. W

8:30 a.m.

August 7, 2026

YUMMY DONUTS,
INC., a California

corporation and
JIMHORN BOON KWOK, an

individual,

Cross-Complainants,

vs.

TANYA KALAYDJIAN
and NADYA

DONIKIAN,
Successor Trustees of the SONA

DAGLIYAN
SURVIVORS' TRUST under the

VARTAN and SONA
DAGLIYAN LIVING

TRUST dated
November 5, 2002; TANYA

KALAYDJIAN, an
individual; NADYA

DONIKIAN, an

individual; ROES 1-

30,inclusive.

Defendants.

The Court

CONTINUES this motion to September 14, 2026. The parties are ordered to meet and confer in-person or by telephone in a good faith attempt to resolve or narrow the issues raised by this demurrer.

Background

This

is a commercial landlord/tenant dispute. Defendant Jimhown Kwok is the owner and operator of Defendant Yummy Donuts, Inc., a small donut shop located at 7555 Balboa Boulevard. In 2012, Defendants entered into a 10-year commercial lease with Plaintiffs Tanya Kalaydjian, Nadya Donikian, Sona Dagliyan Survivors' Trust, and Sona Dagliyan Living Trust.

On October 1, 2022, Defendants exercised their right to extend their lease by an additional ten years. According to Plaintiffs, the extension option in the lease stated that the new rent, "shall be the prevailing market rate, but in no case less than the rent paid in the last term of the lease, which increases measured using the cost-of-living index, CPI-U for Los Angeles, Riverside, and Orange County."

The parties now dispute exactly how much Defendants owe in yearly rent. Since October, 2022, Defendants have paid \$5,200 per year in rent. Meanwhile, Plaintiffs contend that Defendants owe upwards of \$7,200 a year.

On October 23, 2025, Plaintiffs filed suit against Defendants for breach of contract and requested declaratory relief.

On April 7, 2026, Defendants (herein Cross-Complainants) Yummy Donuts, Inc. and Jimhorn Boon Kwok filed a Cross-Complaint against Plaintiffs, alleging seven causes of action: 1) fraudulent inducement; 2) negligent misrepresentation; 3) breach of written contract; 4) conversion; 5) IIED; 6) declaratory relief; and 7) violation of BPC § 17200.

Now, Plaintiffs demur to all seven causes of action alleged in

Cross-Complainants' Cross-Complaint, asserting that they all fail to allege sufficient facts.

Meet and Confer

Before filing a demurrer, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. (CCP § 430.41(a) [emphasis added].) A declaration must be filed with a demurrer regarding the results of the meet and confer process. (CCP § 430.41(a)(3) [emphasis added].)

Here, Plaintiffs/Cross-Defendants provide the declaration of attorney Richard Kolber, who states only that, "[a]fter reviewing the Cross-Complaint, I sent Cross-Complainants' counsel a meet and confer communication stating that the causes of action asserted therein were deficient, and I asked counsel to withdraw or amend the claims. Cross-Complainants' counsel stated he would not amend the Cross- Complaint or withdraw the deficient allegations and causes of action." (Kolber Decl. ¶ 2 [emphasis added].)

This declaration is inadequate to meet Cross-Defendants' meet and confer obligations. Cross-Defendants appear to have only sent a single email, and make no showing of a conversation in person or by telephone.

The Court believes that a robust meet and confer is a crucial part of litigation process, as it obligates the parties to communicate and make a genuine effort to narrow the scope of their dispute. Thus, the Court CONTINUES this motion September 14, 2026. The parties are ordered to properly meet and confer in-person or by telephone and discuss in good faith the issues raised by the demurrer. If the parties can resolve their differences, the parties shall take the hearing on the demurrer off calendar.

Conclusion

The Court CONTINUES the hearing on the demurrer to September 14, 2026. The parties are ordered to properly meet and confer in-person or by telephone for at least one hour.

IT

IS SO ORDERED.

Cross-Defendants TO GIVE NOTICE.